

CHAPTER 42.

An Act to amend the provisions of the Education (Scotland) Acts, 1872 to 1933, with regard to the age up to which parents are required to provide efficient education for their children and in other respects; and to amend the provisions of Part IV of the Children and Young Persons (Scotland) Act, 1932, with regard to the age up to which those provisions have effect and with regard to the employment of children in entertainments.

[31st July 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I.**EXTENSION OF SCHOOL AGE.**

1.—(1) Section fourteen of the Act of 1918 (which continues the obligation on every parent to provide efficient education for his children until they respectively attain the age of fifteen) shall, notwithstanding anything contained in section thirty-three of the said Act, come into operation on the first day of September, nineteen hundred and thirty-nine, subject, however, to the following amendment, namely, in subsection (1) the word “fourteen” shall be substituted for the word “thirteen” in both places where that word occurs.

Commence-
ment and
amendment
of s. 14 of
Act of 1918.

(2) Nothing in subsection (1) of section fourteen of the Act of 1918 as amended by the foregoing subsection shall apply—

- (a) to any child born on or before the first day of September, nineteen hundred and twenty-five; or
- (b) to any child in respect of whom an employment certificate granted under section two of this Act is in force.

PART I.

—cont.
Grant of
employ-
ment
certificates.

2.—(1) An employment certificate shall be granted by the education authority in duplicate to the intended employer and to the parent of a child who has attained the age of fourteen and who resides in the area of the authority, if the authority are satisfied that the parent of the child desires the employment for the child and are also satisfied after consultation with the local committee for juvenile employment, if any, and after consideration by the medical officer of the health and physical condition of the child with reference to the occupation proposed that the employment will be beneficial to the child.

(2) Every employment certificate shall state the date from which it is to have effect, and that date, unless in any particular case the education authority otherwise determine, shall be a date prescribed by the authority in pursuance of section seven of the Act of 1908 for terminating school attendance.

(3) The education authority in determining whether any employment will be beneficial shall take into consideration the prospective as well as the immediate benefit to the child, and shall have regard to—

(a) the nature and probable duration of the employment, the wages to be paid, and the hours of work;

(b) the opportunities to be afforded to the child for further education; and

(c) the time available to the child for recreation; and the determination of the authority shall be conclusive.

(4) The provisions of section nine of the Act of 1908 shall apply to the granting of employment certificates in like manner as those provisions apply to the granting of exemption from the obligation to attend school.

(5) The education authority shall where practicable require an undertaking from an employer in connection with all or any of the matters mentioned in paragraphs (a), (b) and (c) of subsection (3) of this section as a condition precedent to the grant of an employment certificate, and shall also require such undertakings from the employer as they think necessary for enabling them to satisfy themselves that the employment has not, by reason of any change in the conditions thereof or for any other reason, ceased to be beneficial to the child, and shall

specify in the certificate the terms of any undertaking so given.

PART I.
—cont.

(6) If an employer to whom an employment certificate has been granted refuses or neglects to carry out the terms of any undertaking given by him and specified in the certificate, he shall be liable, on conviction by a court of summary jurisdiction, to a fine not exceeding forty shillings, or, in the case of a second or subsequent conviction, not exceeding five pounds.

(7) Where an education authority propose to grant an employment certificate relating to employment in the area of another education authority, the first mentioned authority shall, unless arrangements made between the two authorities otherwise provide, give notice to that other authority of their intention to grant the certificate, and if that other authority, within seven days from the receipt of the notice, notify the first mentioned authority that they would not themselves hold the employment to be beneficial for children residing in their area, or that the date from which the certificate is to have effect should be one of the dates prescribed by the authority for terminating school attendance in that area, the certificate shall not be granted or shall, if granted, be expressed to have effect from one of the said dates, as the case may be :

Provided that no parent or employer shall incur any liability by acting on the faith of an employment certificate granted by an education authority by reason only that the certificate was granted in contravention of the provisions of this subsection, or in breach of any arrangements made with any other education authority.

3.—(1) An employment certificate shall cease to have effect—

Provisions
with respect
to employ-
ment
certificates
ceasing to
have effect.

(a) if the child in respect of whom it was granted does not enter the service of the employer named in the certificate within twenty-one days after the date stated therein as the date from which the certificate is to have effect; or

(b) if and as soon as the child ceases to be employed by that employer.

(2) The education authority may give to an employer to whom an employment certificate has been

PART I. granted notice in writing of their intention to cancel the
—cont. certificate in any case where—

- (a) any term of an undertaking given by the employer and specified in the certificate is not observed by him; or
- (b) it appears to the authority that the child in respect of whom the certificate was granted has failed to make use of any opportunities for further education afforded to him in pursuance of such undertaking or to comply with any condition on which the certificate was granted; or
- (c) the authority are satisfied that, by reason of any change in the conditions of employment or for any other reason, the employment has ceased to be beneficial to the child.

(3) An employment certificate shall, if the notice to cancel is not withdrawn, cease to have effect on the expiration of seven days from the date of the notice.

(4) Where an employment certificate has ceased to have effect, then if the child in respect of whom it was granted attends with the consent of the education authority a course of instruction approved by the authority, he shall, unless and until the consent is withdrawn, be deemed, for the purposes of the Education (Scotland) Acts, 1872 to 1936, to be receiving efficient education and, for the purposes of section thirty-seven of the Unemployment Insurance Act, 1935, to be under full-time instruction at a day school.

25 & 26
Geo. 5, c. 8.

(5) Every employment certificate ceasing by virtue of the provisions of this section to have effect shall be forthwith returned to the education authority by whom it was granted.

(6) The education authority shall give to the parent of any child in respect of whom an employment certificate is granted a copy of any notice given by the authority of their intention to cancel the certificate.

Limitation
of power
of ex-
emption
under Act
of 1901.

4.—(1) Notwithstanding anything in the Act of 1901, an education authority shall not, after the thirty-first day of August, nineteen hundred and thirty-nine, grant under that Act exemption to any child from the obligation to attend school unless the exemption is granted for

the purpose of enabling the child to give assistance at home and the authority are satisfied that by reason of any circumstances existing at his home it would cause exceptional hardship to require the child to attend school. PART I.
—cont.

(2) Any such exemption as aforesaid, if granted during the currency of the school term, shall be for a period ending not later than the end of that term, and, if granted between two school terms, shall be for a period ending not later than the end of the ensuing term :

Provided that nothing in this subsection shall prohibit an education authority from renewing an exemption if they think fit to do so, and the provisions of this section shall apply to any such renewal in like manner as they apply to the original grant of such exemption.

5.—(1) In Part IV of the Children and Young Persons (Scotland) Act, 1932, the expression “ child ” shall, as from the first day of September, nineteen hundred and thirty-nine, mean a person under fifteen years of age and accordingly section fifty-four of the said Act shall be amended by the substitution for the words “ such day as the Scottish Education Department may appoint ” of the words “ the first day of September, nineteen hundred and thirty-nine ” : Application
of Part IV
of Children
and Young
Persons
(Scotland)
Act, 1932, to
children
between 14
and 15.
22 & 23
Geo. 5. c. 47.

Provided that—

- (i) the provisions of subsection (3) of section forty-three of the aforesaid Act as to the hour after which a child may not be employed shall not apply to employment in entertainments, in accordance with a licence granted under section fifty of that Act, of a child who has attained the age of fourteen years; and
- (ii) the provisions of sections forty-three, forty-four, and forty-nine of the said Act shall not apply to a child who has attained the age of fourteen and in respect of whom an employment certificate granted under section two of this Act is in force.

(2) Nothing in the foregoing subsection shall apply to any child born on or before the first day of September, nineteen hundred and twenty-five.

PART II.

AMENDMENT OF THE EDUCATION (SCOTLAND) ACTS.

Extension
of Act of
1890 to deaf
children.

6.—(1) The Act of 1890 shall be extended so as to apply to deaf children in like manner as it applies to deaf-mute children and accordingly the word “deaf” shall be substituted for the word “deaf-mute” or for the expression “a deaf-mute” wherever occurring in that Act.

(2) For section three of the Act of 1890 there shall be substituted the following section:—

“3.—(1) It shall be the duty of the education authority of the area in which the parent of a blind or deaf child between three and eighteen years of age resides to provide for the efficient education of such child either in a school belonging to such education authority or in some other school or institution approved by the Scottish Education Department, and where necessary for the boarding of the child at some place approved by the education authority and for the conveyance of the child to and from such school or institution or place.

(2) An education authority shall be entitled to recover from the parent of any child for whose boarding provision has been made in pursuance of this section the expense thereby incurred or, if the authority are satisfied that the parent is unable to pay the whole of such expense, such part thereof, if any, as he is, in the opinion of the authority, able to pay.”

Amendment
of Act of
1906.

7. For sections one and two of the Act of 1906, the following sections shall be respectively substituted:—

“1. It shall be the duty of an education authority to make special provision to the satisfaction of the Scottish Education Department for the education, either in schools or otherwise, and, where necessary, for the conveyance to and from school, of mentally or physically defective children between five and sixteen years of age within their area.

2. In this Act—

‘Mentally defective children’ means children who, not being imbecile, and not

being merely dull or backward, are, by reason of mental defect, incapable of receiving proper benefit from the instruction in the ordinary schools; and

PART II.
—cont.

‘Physically defective children’ means children who by reason of physical defect or ill-health are unable to attend ordinary schools or are incapable of receiving proper benefit from the instruction in the ordinary schools.”

8. Section three of the Act of 1908 (which relates to additional general powers of education authorities) shall be amended by the addition, after paragraph (7), of the following paragraphs:—

Amendment
of Act of
1908, s. 3.

“(8) In providing, for children attending school, vacation schools, vacation classes, play-centres, or other means of recreation during their holidays or at such other times as the education authority may prescribe :

Provided that in any exercise of powers under this paragraph the education authority may encourage and assist the establishment or continuance of voluntary agencies or associations, and associate with themselves representatives of such agencies or associations.

(9) In making arrangements with the approval of the Department to supply or maintain, or aid the supply or maintenance of, holiday or school camps for children attending school or young persons attending continuation classes.”

9. For section five of the Act of 1908 the following section shall be substituted :—

Amendment
of Act of
1908, s. 5.

“5. It shall be lawful for an education authority which makes special provision for the education of physically or mentally defective or blind or deaf children to require the parent of any such child to provide efficient education for him from the time when he attains the age of five years until the close of the school session in which he attains the age of sixteen years.”

10. Subsection (2) of section twenty-four of the Act of 1908 (which section relates to borrowing powers) is hereby repealed.

Repeal of
subsection
(2) of s. 24 of
Act of 1908.

PART II.

—*cont.*
Amendment
of Act of
1908, s. 34.

11. Section thirty-four of the Act of 1908 shall be amended by the omission of the definitions of "intermediate school" and "secondary school" and the insertion after the definition of "the Department" of the following paragraph:—

"The expression 'secondary education' means instruction approved by the Department in such subjects as may from time to time be recognised by them as suitable for pupils who have reached the stage recognised in accordance with the regulations of the Department for the time being in force as marking the conclusion of the primary course."

Amendment
of Act of
1918, s. 4.

12. Section four of the Act of 1918 (which enables education authorities to facilitate attendance at certain educational institutions) shall be amended by the substitution (a) in subsection (1) of the words "where the Department so approve, continuation classes or other educational institutions" for the words "any other educational institution approved for the purpose by the Department," and (b) in subsection (2) of the words "approved by the Department" for the words "as in this Act provided."

Contribution in
respect of
non-resident
students
attending
continuation
classes.

13.—(1) Where continuation classes provided by the education authority in any education area are attended by persons resident outwith that area, there shall be paid in each year to that authority out of the education fund of the education area in which any such persons are so resident either a sum equal to the cost of the instruction of such persons in those classes (including in such cost repayment of and interest on loans for capital expenditure) after deduction of income from all sources of income other than education rate or such other sum as may be agreed upon by the education authorities concerned:

Provided that no payment shall be made under this section out of the education fund of any education area in respect of any person for whom it is shown, to the satisfaction of the Department, that suitable instruction is available in accessible continuation classes within that area, regard being had to all the circumstances.

(2) Subsection (12) of section fifteen of the Act of 1918 is hereby repealed.

14. Section twenty-one of the Act of 1908 and section twenty-four of the Act of 1918 (which sections relate to dismissal of teachers) shall apply in like manner as they apply to an education authority and certificated teachers in their service to—

PART II.
—cont.
Dismissal of teachers in day and demonstration schools.

(a) the governing body (other than an education authority) of any day school as defined in section thirty-four of the Act of 1908, and the certificated teachers employed therein; and

(b) the provincial committee for the training of teachers managing any demonstration school and the certificated teachers employed therein.

15.—(1) Every registrar of births, deaths, and marriages shall make to an education authority such returns of particulars with regard to the births and deaths of children registered by him as may be required by the authority with the approval of the Registrar General of Births, Deaths, and Marriages in Scotland.

Returns of registrars of births, deaths and marriages to education authorities.

(2) The education authority by whom any return is required under the foregoing subsection shall provide the form on which it is to be made and shall pay to the registrar (a) such fee as may be agreed upon between them not exceeding twopence for every birth or death included in the return; and (b) the cost of transmission thereof by post.

16. The amendments specified in the third column of the Schedule to this Act, being amendments of a minor or consequential nature, shall be made in the enactments specified in the first and second columns of that Schedule.

Minor and consequential amendments.

PART III.

INTERPRETATION, &c.

17.—(1) In this Act—

“ Act of 1890 ” means the Education of Blind and Deaf-Mute Children (Scotland) Act, 1890;

“ Act of 1901 ” means the Education (Scotland) Act, 1901;

“ Act of 1906 ” means the Education of Defective Children (Scotland) Act, 1906;

“ Act of 1908 ” means the Education (Scotland) Act, 1908;

“ Act of 1918 ” means the Education (Scotland) Act, 1918;

Interpretation.

53 & 54
Vict. c. 43.

1 Edw. 7.
c. 11.

6 Edw. 7.
c. 10.

8 Edw. 7.
c. 63.

8 & 9 Geo. 5
c. 48.

PART III.
—cont.

“ Deaf ” means too deaf to be taught in a class of hearing children in a public school;

“ Local committee for juvenile employment ” means, in relation to any child, a local advisory committee for juvenile employment in the area where the child resides, established by the Minister of Labour, or any special advisory committee so established as aforesaid.

(2) For the purposes of the Unemployment Insurance Act, 1935, a child in respect of whom an employment certificate has been granted under this Act shall, as from the date from which the certificate has effect and notwithstanding that it may thereafter cease to have effect, be deemed to have attained the minimum age for entry into insurance.

(3) Unless the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as amended by any subsequent Act including this Act.

Citation and
construc-
tion.

18. This Act may be cited as the Education (Scotland) Act, 1936, and the Education (Scotland) Acts, 1872 to 1933, and this Act shall be construed as one and may be cited together as the Education (Scotland) Acts, 1872 to 1936.

Section 16.

SCHEDULE.

AMENDMENT OF CERTAIN ENACTMENTS.

Session and Chapter.	Short Title.	Nature of Amendment.
35 & 36 Vict. c. 42.	The Education (Scotland) Act, 1872.	In section thirty, after the words “ inspectors of schools ” there shall be inserted the words “ or by any other person appointed by the Scottish Education Department for the purpose.” In section sixty-six, after the word “ inspectors ” there shall be inserted the words “ or of any other person appointed by the

Session and Chapter.	Short Title.	Nature of Amendment.
35 & 36 Vict. c. 42— <i>cont.</i>	The Education (Scotland) Act, 1872— <i>cont.</i>	“Scottish Education Department for the purpose,” and after the words “such inspector” there shall be inserted the words “or person.”
41 & 42 Viet. c. 79.	The Education (Scotland) Act, 1878.	In section nineteen, the words “providing a course of secondary education extending over at least three years” shall be substituted for the words “in which the education given does not consist chiefly of elementary instruction in reading, writing, and arithmetic, but of instruction in Latin, Greek, modern languages, mathematics, natural science, and generally in the higher branches of knowledge” and the words “course of secondary education provided” shall be substituted for the words “higher branches of knowledge taught.”
53 & 54 Vict. c. 43.	The Education of Blind and Deaf - Mute Children (Scotland) Act, 1890.	In section eight, after the words “inspectors of schools” there shall be added the words “or of any other person appointed by the Scottish Education Department for the purpose.”
8 Edw. 7. c. 63.	The Education (Scotland) Act, 1908.	In section three, as amended by section five of the Education (Scotland) Act, 1925, in paragraph (4) the words “mentally or physically” shall be substituted for the words “epileptic or crippled or”. In section sixteen, in paragraph (a) of subsection (1) the words “schools providing courses of secondary education extending over at least three years” shall be substituted for the words “secondary and intermediate schools.” In section twenty, the words “a school providing a course of secondary education extending over at least three years” shall be substituted for the words “an intermediate or secondary

Session and Chapter.	Short Title.	Nature of Amendment.
8 Edw. 7. c. 63 —cont.	The Education (Scotland) Act, 1908—cont.	school" and the words "such schools" shall be substituted for the words "intermediate or secondary schools." In section twenty-six, the words "school providing a course of secondary education extending over at least five years" shall be substituted for the words "secondary school within the meaning of this Act." In section twenty-nine, in subsection (1), the words "any school providing a course of secondary education extending over at least three years" shall be substituted for the words "any intermediate or secondary school"; and the words "a school providing a course of secondary education extending over at least three years" shall be substituted for the words "an intermediate or secondary school" wherever they occur. In section thirty-four, the words "grants to" occurring in paragraph (b) of the definition of the expression "day school" and the definition of the expression "state-aided school" shall be omitted.
8 & 9 Geo. 5. c. 48.	The Education (Scotland) Act, 1918.	In section three of the Education (Scotland) Act, 1918, as amended by section three of the Education (Scotland) Act, 1925, in paragraph (e) of subsection (2) the words "schools providing a course of secondary education extending over three years or longer," shall be substituted for the words "intermediate or secondary schools." In section four, in subsection (1) the words "a course of secondary education extending over three years or longer" shall be substituted for the words "an intermediate or secondary school."

Session and Chapter.	Short Title.	Nature of Amendment.
8 & 9 Geo. 5. c. 48— <i>cont.</i>	The Education (Scotland) Act, 1918— <i>cont.</i>	In section six, in paragraph (a) of subsection (1), the word "intermediate" shall be omitted. In section nine, in subsection (2) the words "recognised as a " school providing a course of " secondary education extending " over at least three years or at " least five years as the case may " be " shall be substituted for the words " so recognised." In section ten, after the words " so resident " there shall be inserted the word " either," and after the words " and from fees " there shall be inserted the words " or " such other sum as may be " agreed upon by the education " authorities or by the govern- " ing body and the education " authority as the case may be." In section fourteen, in subsection (3), the words " first day of Sep- " tember nineteen hundred and " thirty-nine " shall be substituted for the words " appointed day " in both places where those words occur. In section fifteen, in paragraph (i) of subsection (6) the word " fifteen " shall be substituted for the word " fourteen," in paragraph (ii) of the said subsection the words " school or a school " recognised as providing a " course of secondary education " extending over at least three " years " shall be substituted for the words " intermediate or secondary school," and in paragraph (iii) of the said subsection the words " school provid- " ing a course of secondary " education extending over at " least five years " shall be substituted for the words " inter- mediate or secondary school," and the words " a course of " secondary education extend- " ing over at least five years " shall

Session and Chapter.	Short Title.	Nature of Amendment.
8 & 9 Geo. 5. c. 48— <i>cont.</i>	The Education (Scotland) Act, 1918— <i>cont.</i>	be substituted for the words " the post-intermediate course " where ever they occur. In section fifteen, in subsection (15) after the words " attend school " there shall be inserted the words " or in respect of whom an employment certificate granted under the Education (Scotland) Act, 1936, is in force." In section seventeen for the words from " who has not " to " attend school " there shall be substituted the words " other than a child or young person in respect of whom an employment certificate granted under the Education (Scotland) Act, 1936, is in force." In the Third Schedule, for paragraph 3 the following paragraph shall be substituted— " 3. Where the education authority is a county council or a joint county council a committee shall be reconstituted after each fresh election of the council, as at such date as they may appoint, being not less than one month or more than two months after such election, and shall remain in office until the next reconstitution, or until the coming into force of a revised or modified scheme, whichever of these events shall first occur. Where the education authority is the town council of a burgh being a county of a city, the committee shall be reconstituted at such intervals as the Department may appoint."